

25STCV12569 25STCV12569

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Case Number: 25STCV12569 Hearing Date: July 27, 2026 Dept: 510

No.

8 – Jessica Lange v. Ronen Zargarof, et al.

Defendant

Abraham Michael Pessar's Motions for Orders Deeming Requests for Admission

Admitted and Compelling Responses to Form Interrogatories, Special

Interrogatories, and Requests for Production

Defendant

Abraham Michael Pessar moves for an order deeming that Plaintiff Jessica Lange has admitted the truth of the matters specified in Defendant's requests for admission. Defendant also moves for orders compelling Plaintiff to respond to form interrogatories, special interrogatories, and requests for production.

As

an initial matter, the Court notes that Defendant's two motions to compel initial responses concern three different sets of discovery. Specifically, the motion to compel responses to form interrogatories also seeks to compel responses to special interrogatories. This constitutes an improper omnibus motion. Defendant is advised to file all motions separately and pay the required filing fee for each in the future. Defendant is ordered to pay the clerk \$60 forthwith.

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party must respond to written discovery "[w]ithin 30 days after service." (Code Civ. Proc., §§ 2030.260(a) [interrogatories], 2031.260(a) [requests for production], 2033.250(a) [requests for admission].) When the responding party fails to serve a timely response to interrogatories or requests for production, the requesting party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290(b)

[interrogatories], 2031.300(b) [requests for production].) Failing to serve a timely response results in waiving any objections. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a).) When a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280(b).)

Plaintiff failed to serve timely responses to Defendant’s discovery requests. Defendant served his requests for admission, form interrogatories, special interrogatories, and requests for production on Plaintiff on February 18, 2026. (Bonakdar Decls., ¶ 4.) As of the date these motions were filed, Plaintiff had still not responded. (Id., ¶ 6.) However, Plaintiff’s counsel attests that he served discovery responses after these motions were filed, on June 25, 2026. (See Goodman Decls., at p. 2.)

First, Plaintiff argues that Defendant’s discovery motions are defective because they do not include a meet and confer declaration. This is not required. Meet and confer is not a prerequisite to file a motion to compel initial discovery responses.

Second, Defendant argues that Plaintiff’s responses are not properly verified and, therefore, “are tantamount to no responses at all.” (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.) The Court has reviewed the verification page in dispute and does not find that Plaintiff checked conflicting boxes. The responses are verified. Therefore, an order compelling initial responses to form interrogatories, special interrogatories, and requests for production is unnecessary.

Third, Defendant argues that the responses received are not code-compliant. The Court cannot address this in a motion to compel initial responses. If Defendant seeks further responses from Plaintiff, he must file a separate motion with an accompanying separate statement after meet and confer efforts have been exhausted.

Fourth, because neither Plaintiff nor Defendant attached a copy of Plaintiff’s discovery responses to requests for admission, the Court cannot find that the responses are in “substantial compliance” as to potentially avoid an order deeming requests for admission

admitted. (See CCP § 2033.280(a)(2).) The Court also does not find that the Plaintiff's failure to timely respond was a result of mistake, inadvertence, or excusable neglect. (See *id.*, subd. (a)(1).) In opposition, Plaintiff argues that she was entitled to take Defendant's deposition before responding to written discovery. However, Defense counsel never agreed to this arrangement. (See Goodman Decls., Ex. 4.) Discovery responses are due within 30 days of service, regardless of whether a deposition follows the 30-day timeframe, as it often does.

Defendant is therefore entitled to an order deeming admitted the matters specified in his requests for admission.

Sanctions

Defendant

also requests monetary sanctions against Plaintiff. Code of Civil Procedure section 2031.300(c) provides, "[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (See also Code Civ. Proc., § 2030.290(c) [interrogatories].) Plaintiff failed to provide any responses by the deadline. There is no evidence that Plaintiff acted with substantial justification.

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Court finds sanctions are appropriate. Defendant did not, however, reasonably incur \$3,030 in expenses in preparing these three motions. (Goodman Decls., ¶ 15.) They are almost identical to each other. The Court exercises its discretion to reduce Defense counsel's hours incurred drafting these motions by one-third. $[(\$2,850/3) * 2] = \$1,900$. The Court will award \$180 in filing fees. Thus, Plaintiff reasonably incurred a total of \$2,080 in total fees and costs.

Disposition

Defendant

Abraham Michael Pessar's motions to compel responses to form interrogatories, special interrogatories, and request for production are granted in part as to sanctions only.

Defendant

Abraham Michael Pessar's motion to deem matters admitted is granted. Defendant's request for admissions is hereby deemed admitted.

Plaintiff

Jessica Lange and her counsel of record are ordered to pay Defendant Abraham Michael Pessar \$2,080 in sanctions within 21 days.

Defendant

Abraham Michael Pessar is ordered to pay \$60 to the clerk of the court as unpaid filing fees.